

PART I—*cont.*

1	2	3	4
Session and Chapter	Short Title	How far continued	Amending Acts
(7) 10 & 11 Geo. 6. c. 36.	The Education (Exemptions) (Scotland) Act, 1947.	The whole Act ...	—
(8) 12, 13 & 14 Geo. 6. c. 25.	The Tenancy of Shops (Scotland) Act, 1949.	The whole Act ...	—

PART II

1	2	3	4
Session and Chapter	Short Title	How far continued	Amending Acts
(9) 6 & 7 Geo. 6. c. 44.	The Rent of Furnished Houses Control (Scotland) Act, 1943.	The whole Act ...	10 & 11 Geo. 6. c. 43. 12, 13 & 14 Geo. 6. c. 40.
(10) 8 & 9 Geo. 6. c. 15.	The Licensing Planning (Temporary Provisions) Act, 1945.	The whole Act ...	9 & 10 Geo. 6. c. 53. 10 & 11 Geo. 6. c. 51. 12, 13 & 14 Geo. 6. c. 59.
(11) 9 & 10 Geo. 6. c. 34.	The Furnished Houses (Rent Control) Act, 1946.	The whole Act ...	12, 13 & 14 Geo. 6. c. 40.

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## CHAPTER 4

### *Pneumoconiosis and Byssinosis Benefit Act, 1951*

#### ARRANGEMENT OF SECTIONS

##### Section

1. Pneumoconiosis and byssinosis benefit schemes.
  2. Restrictions on scope of schemes.
  3. Nature and amount of benefit.
  4. Ancillary provisions, etc.
  5. Existing benefit schemes.
  6. Interpretation.
  7. Short title.
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An Act to provide for the payment of benefit out of the Industrial Injuries Fund to or in respect of certain persons who are totally disabled or die or have died after the thirty-first day of December, nineteen hundred and forty-nine from pneumoconiosis or byssinosis, not being or having been insured in respect of those diseases respectively under the National Insurance (Industrial Injuries) Act, 1946, or entitled to workmen's compensation in respect thereof.

[7th December 1951.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of National Insurance may, by a scheme made with the consent of the Treasury, provide for the payment of allowances or other benefit out of the Industrial Injuries Fund—

Pneumo-  
coniosis and  
byssinosis  
benefit  
schemes.

(a) to persons who, having been employed in Great Britain before the fifth day of July, nineteen hundred and forty-eight in any occupation, being a prescribed occupation in relation to a disease to which this Act applies, are at the commencement of the scheme, or thereafter become, totally disabled by that disease;

(b) to the dependants of persons who, having been so employed, die or have died at any time after the thirty-first day of December, nineteen hundred and forty-nine as a result of that disease.

(2) The diseases to which this Act applies are pneumoconiosis and byssinosis.

(3) Subject to the following provisions of this Act, the right to benefit in pursuance of a scheme under this section shall be subject to such conditions as may be provided by the scheme, and the rate or amount of any such benefit shall be such as may be so provided.

(4) Any scheme under this section may be revoked or varied by a subsequent scheme thereunder.

(5) The power to make a scheme under this section shall be exercisable by statutory instrument, but the Minister shall not make any such scheme unless a draft of it has been laid before Parliament and approved by resolution of each House.

Restrictions  
on scope of  
schemes.

2.—(1) A scheme under section one of this Act shall not provide for the payment of benefit to or in respect of a person disabled or dying as a result of a disease to which this Act applies—

- (a) if he has on or after the fifth day of July, nineteen hundred and forty-eight been employed in insurable employment in any occupation, being a prescribed occupation in relation to that disease;
- (b) if he or any person being a member of his family within the meaning of the Workmen's Compensation Act, 1925, has received or is entitled to compensation in respect of the disablement or death by virtue of any scheme made or certified under the Workmen's Compensation Acts, or by virtue of any scheme or law in force in any country or territory outside Great Britain providing for compensation in respect of that disease;
- (c) if he would have received or would be entitled to such compensation by virtue of any scheme made or certified as aforesaid but for the fact that he was or is entitled to receive compensation in respect of disablement from any other disease or in respect of an injury by accident;
- (d) if he or his personal representative or any of his relatives has recovered any sum by way of damages in respect of the disablement or death, whether at common law or under the Fatal Accidents Acts, 1846 to 1908, or the Law Reform (Miscellaneous Provisions) Act, 1934;
- (e) if throughout the employment mentioned in paragraph (a) of subsection (1) of section one of this Act he was employed otherwise than as a workman within the meaning of the Workmen's Compensation Act, 1925.

(2) A scheme under section one of this Act shall not provide for the payment of benefit to or in respect of a person disabled or dying as a result of the disease of byssinosis unless he has been employed for a period or periods amounting in the aggregate to not less than twenty years in an occupation being a prescribed occupation in relation to that disease, and shall not provide for the payment of benefit to a person so disabled unless it is determined in accordance with the scheme that the disablement is likely to be permanent.

(3) The foregoing provisions of this section shall be without prejudice to any other restrictions which may be imposed by a scheme under section one of this Act in respect of the persons to or in respect of whom benefit is payable under the scheme.

Nature and  
amount of  
benefit.

3.—(1) The benefit payable to any person in pursuance of a scheme under section one of this Act in respect of disablement shall be by way of a weekly allowance.

(2) Subject to the following provisions of this Act and to any provisions of the scheme for the adjustment of benefit thereunder by reference to pensions, allowances or other benefits payable out of public funds, the weekly rate of an allowance in respect of disablement shall be forty shillings, increased, in such circumstances and subject to such conditions as may be prescribed by the scheme,—

- (a) in any case, by an amount equal to the unemployability supplement which would be payable under section thirteen of the National Insurance (Industrial Injuries) Act, 1946, if the person entitled to the allowance were entitled to a disablement pension;
- (b) where the said person requires constant attendance as the result of the disablement, by an amount equal to any increase which would be payable under section fifteen of the said Act if he were entitled to a disablement pension in respect of an assessment of one hundred per cent.;
- (c) where the said person has a family which includes a child or children within the meaning of section seventeen of the said Act, by an amount equal to any increase which would be payable under the said section seventeen in respect of that child or those children if he were entitled to injury benefit;
- (d) where the said person is residing with or is wholly or mainly maintaining his wife (or is under the scheme to be treated as doing so), by an amount equal to any increase which would be payable under section eighteen of the said Act in respect of her if he were entitled to injury benefit.

(3) The benefit payable in pursuance of such a scheme in respect of the death of any person shall be payable to or for the benefit of such persons as may be prescribed by the scheme (being members of the deceased's family within the meaning of the Workmen's Compensation Act, 1925, who at the time of the death were or are treated for the purposes of the scheme as having been wholly or in part dependent on the deceased's earnings); and subject to the following provisions of this Act such benefit shall be a capital sum or sums of an amount or aggregate amount not exceeding three hundred pounds.

4.—(1) Sections three to five of the Workmen's Compensation Ancillary (Supplementation) Act, 1951 (which regulate the incidental provisions, etc. matters for which provision may be made by a scheme under that Act, and provide for the punishment of certain offences under that Act and for the making of reciprocal arrangements with Northern Ireland) shall apply for the purposes of this Act—

- (a) as if references to that Act and to a scheme included references to this Act and to a scheme under section one of this Act;

- (b) as if references to allowances (other than the reference in subsection (4) of section three) included references to any benefit payable under a scheme under section one of this Act:

but nothing in this subsection shall authorise the recovery of sums by deduction from benefit payable under a scheme under section one of this Act in respect of the death of any person, or the abatement of such benefit.

(2) Without prejudice to the powers conferred by the said section three as applied by this section, a scheme under section one of this Act may in particular make provision—

- (a) for the determination of questions of such classes as may be prescribed by the scheme by a Medical Board;
- (b) for the determination by the Industrial Injuries Commissioner, on a reference in accordance with the provisions of the scheme, of questions of any such classes as may be so prescribed.

(3) A scheme under section one of this Act may direct that so much of section twenty-six of the Workmen's Compensation Act, 1925, and the Second Schedule to that Act as provides for the administration by the county court of workmen's compensation payable in the case of death, and so much of subsection (2) of section twenty-one of that Act as provides for the amount of compensation payable to each dependant to be settled by the county court, shall apply, subject to such modifications as may be prescribed by the scheme, in relation to benefit payable under the scheme in respect of the death of any person; and for the purposes of any such scheme the provisions so applied, and sections twenty-two and twenty-seven of the said Act of 1925, shall have effect accordingly notwithstanding any repeal effected by the National Insurance (Industrial Injuries) Act, 1946.

(4) In the application of this section to Scotland, references to sections twenty-one, twenty-two, twenty-six and twenty-seven of the Workmen's Compensation Act, 1925 shall include references to section forty-nine of that Act in so far as it relates to those sections, and for references to the county court there shall be substituted references to the sheriff court.

Existing  
benefit  
schemes.

5.—(1) The benefit schemes in force at the commencement of this Act under section two of the Workmen's Compensation and Benefit (Byssinosis) Act, 1940 and section two of the Workmen's Compensation Act, 1943 may with the consent of the Treasury be revoked by subsequent schemes made in accordance with the provisions of those Acts respectively, and those provisions shall apply in relation to any such subsequent scheme notwithstanding any repeal effected by the National Insurance (Industrial Injuries) Act, 1946.

(2) A scheme for the revocation of any such benefit scheme as aforesaid may make provision for winding up the benefit fund constituted under the original scheme and for transferring the whole or any part of any balance standing to the credit of that fund to the Industrial Injuries Fund.

(3) A scheme under section one of this Act may make provision for securing that where benefit is payable or has been paid to or in respect of any person under any such benefit scheme as aforesaid, the amount of any benefit payable to or in respect of him in pursuance of the scheme under section one of this Act is reduced by the amount of the first mentioned benefit.

6.—(1) In this Act the following expressions have the meanings hereby assigned to them, that is to say—

“pneumoconiosis” has the meaning assigned to it by subsection (3) of section fifty-seven of the National Insurance (Industrial Injuries) Act, 1946, and in the case of a person who suffers or has suffered from pneumoconiosis accompanied by tuberculosis the effects of the tuberculosis may be treated for the purposes of any scheme under section one of this Act as if they were effects of the pneumoconiosis;

“prescribed occupation” means, in relation to a disease to which this Act applies, any occupation in the case of which, by virtue of regulations under section fifty-five of the National Insurance (Industrial Injuries) Act, 1946, that disease is prescribed in relation to insured persons employed in insurable employment;

“the Workmen’s Compensation Acts” means the Workmen’s Compensation Acts, 1925 to 1945 and any enactment repealed by the Workmen’s Compensation Act, 1925;

and unless the context otherwise requires other expressions defined in the said Act of 1946 have the same meanings as in that Act.

(2) The reference in subsection (1) of this section to regulations under the said section fifty-five shall be construed—

- (a) in relation to the employment of a person in any such occupation as is mentioned in paragraph (a) of subsection (1) of section one of this Act or subsection (2) of section two of this Act, as a reference to the regulations in force at the commencement of the scheme or at such time thereafter as may be prescribed by the scheme;
- (b) in relation to the employment of a person in any such occupation as is mentioned in paragraph (a) of subsection (1) of section two of this Act, as a reference to

the regulations which were in force, or are treated by virtue of subsection (3) of the said section fifty-five as having been in force in relation to him, at the commencement of the scheme or at any time thereafter during the said employment.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment.

Short title.        7. This Act may be cited as the Pneumoconiosis and Byssinosis Benefit Act, 1951.

Table of Statutes referred to in this Act.

| Short Title                                                      | Session and Chapter    |
|------------------------------------------------------------------|------------------------|
| Workmen's Compensation Act, 1925 ... ..                          | 15 & 16 Geo. 5. c. 84. |
| Law Reform (Miscellaneous Provisions) Act, 1934 ... ..           | 24 & 25 Geo. 5. c. 41. |
| Workmen's Compensation and Benefit (Byssinosis) Act, 1940 ... .. | 3 & 4 Geo. 6. c. 56.   |
| Workmen's Compensation Act, 1943 ... ..                          | 6 & 7 Geo. 6. c. 6.    |
| National Insurance (Industrial Injuries) Act, 1946               | 9 & 10 Geo. 6. c. 62.  |
| Workmen's Compensation (Supplementation) Act, 1951 ... ..        | 14 & 15 Geo. 6. c. 22. |

CHAPTER 5

An Act to grant money for the purpose of certain local loans out of the Local Loans Fund.  
[7th December 1951.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

- Grants for public works.
- 1.—(1) There may be issued by the National Debt Commissioners for the purpose of local loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of five hundred million pounds.

(2) The sums so issued shall be issued during the period beginning with the passing of this Act and ending on the day on which a further Act granting money for the purposes of those loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887.